

25STCV08551 25STCV08551

County: los-angeles

Division: Civil Law and Motion

Department: 517

Hearing date: 2026-08-05

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Case Number: 25STCV08551 Hearing Date: August 5, 2026 Dept: 517

The Court is granting the motion of Defendant for an order compelling Plaintiff Chana Hayden's compliance with Code of Civil Procedure section 871.26, which requires plaintiffs in Song-Beverly Consumer Warranty Act cases to sit for an early deposition. The deposition shall occur by October 5, 2026. The case management conference on calendar today is continued to October 20, 2026. The Court is also setting for that date an order to show cause as to why Hayden's action should not be dismissed on the Court's own motion. If Hayden fails to appear for the early deposition, the Court will dismiss the action on October 20, 2026. Defendant is entitled under section 871.26 to recover attorney's fees from Plaintiff's counsel Strategic Legal Practices ("SLP") due to Hayden's failure to appear for the early deposition as required by that statute. The sanctions are payable to Defendant's counsel within 30 days of this order.

The motion of SLP to be relieved as counsel for Plaintiff is granted. SLP shall give notice to Hayden of the ruling on the motion to be relieved. SLP also shall file an amended proposed order that notifies Hayden of the October 5, 2026 deposition date and October 20, 2026 hearing dates.